**DRAFT FOR ATTORNEY REVIEW**

# My Rental Fleet
# Terms and Conditions and Privacy Policy

*Working draft dated November 12, 2026. Not legal advice. Do not publish until counsel approves it.*

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## Note to counsel

This draft describes My Rental Fleet as it is being built for launch. It is a starting point for a lawyer. It is not a legal opinion, and it is not ready to show customers. Bracketed text is a blank the business still has to fill in.

The product is a record-keeping app for people who rent out machines, vehicles, and boats. The customer is the rental operator, not the renter. Operators use it to record a check-out and a check-in, with photos, a short walk-around video, notes, meter readings, and the renter's name. A maintenance log stores service notes and receipt photos. The app is being tested as a website and is planned for the Apple App Store and Google Play.

Please confirm or rewrite these points before the draft is used:

- **Legal name.** The operating company name, entity type, state of formation, mailing address, and support email are not filled in. The owner has discussed using an LLC. The customer-facing name is "My Rental Fleet."
- **One-year deletion.** The app already tells users that rental cards, photos, and videos are deleted after one year. Maintenance records are kept until the user deletes them. Counsel should confirm that the automatic one-year deletion is actually running before this promise is published.
- **Accounts.** Google Firebase is the planned home for accounts and text records. Confirm what account information is collected on the launch version.
- **Subscriptions.** Billing is not turned on. The planned price discussed with the owner is $29.99 per month for up to 10 machines, plus $9.99 per month for each additional block of 5 machines. A free trial has been discussed and is not built. App Store and Google Play rules will control billing, cancellation, and refunds.
- **Location.** The current app does not collect GPS or precise location. Do not add a location clause unless that changes.
- **Disputes.** This draft uses Arizona law and Arizona courts. It does not include arbitration or a class-action waiver. Counsel should decide whether those belong here.
- **Evidence.** The app stores a device time and, when the phone next has service, a server receipt time. It does not promise that a record will be admitted in court.
- **Other people's data.** Operators type a renter's name and may photograph a machine that belongs to, or is in the possession of, someone else. Photos can include people, license plates, or private property in the background.

• **VIN lookup.** If a user enters a 17-character VIN, that VIN is sent to the NHTSA vPIC service to suggest year, make, and model. A boat hull number is stored only. It is not looked up.

• **Vendors.** Text records are planned for Google Firebase. Photos and video are stored with Cloudflare R2. Apple and Google will process app-store subscriptions.

## Suggested blanks, used in the draft below

• [Company] — the legal name of the business that owns the app.

• [Entity] — for example, “an Arizona limited liability company.”

• [Address] — a mailing address that can receive legal notices.

• [Email] — the support and privacy contact, such as a company email, not a personal address if one can be avoided.

• [Effective Date] — the date the final version goes live.

# Terms and Conditions

*Effective date: [Effective Date]*

These Terms and Conditions are an agreement between you and [Company], [Entity] (“we,” “us,” or “our”), for the My Rental Fleet app and website (the “Service”). By creating an account, paying for the Service, or using the Service, you agree to these terms. If you do not agree, do not use the Service.

If you use the Service for a company or another person, you confirm that you have authority to bind that company or person. “You” includes that company or person.

## 1. What the Service is

The Service is a tool for rental operators to keep records about their own fleet. You can add machines, vehicles, or boats; record a pre-rental inspection and a return inspection; store photos, video, notes, and meter readings; keep a maintenance log; and save or share a copy of a record.

The Service is not a rental contract. It is not insurance. It is not a law firm, and it does not give legal, tax, or insurance advice. We are not a party to any rental between you and your customer. You are responsible for your own rental agreement, your prices, your insurance, and your compliance with the law.

## 2. Who may use the Service

You must be at least 18 years old and able to form a contract. The Service is for business operators. It is not directed to children under 13, and children under 13 may not use it.

You must use the Service only for machines you own, manage, or have permission to document. You must not use another person’s fleet, records, or account.

## 3. Accounts

You may need an account to use the Service. You agree to give accurate account information and to keep your login private. You are responsible for activity under your account. Tell us promptly at [Email] if you believe someone else is using your account.

We may refuse, suspend, or close an account that breaks these terms, creates a security risk, or is unused for a long period after notice, where notice is practical.

## 4. Your records

You keep ownership of the text, photos, video, and other material you submit (“Your Content”). You give us a limited permission to host, copy, back up, display, transmit, and delete Your Content only as needed to run the Service, to follow these terms, and to follow the law. That permission ends when Your Content is deleted from our systems, except for copies that already left our systems, such as a file you saved to your own phone or a link someone already opened.

You promise that you have the rights you need to upload Your Content, and that Your Content does not break the law or these terms.

A record may include a renter’s name, a VIN, a boat hull number, meter readings, notes, photos, and video. You are responsible for what you collect about your renters and for telling them what you collect, if the law requires that.

## 5. Photos, video, and other people

Inspection photos and video are meant to show the condition of a machine. They can also show people, license plates, addresses, or other private details if those things are in the picture. Do not photograph a person when you do not have a right to do so. Do not use the Service to harass, watch, or embarrass anyone.

Video recorded in the Service is intended to be taken in the app, at a quality we set, so that files stay a practical size. A photo chosen from the phone's library may be a higher resolution. You are responsible for the files you choose to add.

## 6. Timestamps are records, not a court guarantee

The Service stores the time reported by the device when a record or file is created. If the device is offline, the server time is stored when the device next connects. Those times are kept so you have a record. They are not a promise that a court, insurer, or other person will accept the record, or that the record cannot be questioned.

A time can be wrong if the device clock is wrong, if the device is offline, or if a file is interrupted. A copy that you save to your own files can be renamed or stored by you outside the Service. We do not control copies after they leave the Service.

## 7. Offline use

Some rental inspections can be started and finished without an internet connection, after the app has been opened online at least once on that device and the machine is already saved on it. Photos and video taken offline stay on the device until they upload. Maintenance pages and some other pages need a connection.

Offline files can be lost if the phone is lost, reset, or damaged, or if the app is deleted, before the upload finishes. A file can also fail to upload if it is too large or the connection fails. We do not promise that every offline file will upload.

## 8. How long we keep rental and maintenance records

Rental inspection records and the photos and videos that belong to them are deleted from the Service about one year after the rental record is created. The app tells you this. If you need a rental record after that, you must save your own copy before the year ends. We do not promise to recover a rental record after it has been deleted.

Maintenance records, including receipt photos, stay in the Service until you delete them, or until your account or the related machine is deleted. They are not on the one-year rental schedule.

If you delete a machine, we delete that machine and the rental records, maintenance records, photos, and videos stored with it, including copies in cloud storage. Deletion does not erase a copy you already saved to your own phone or computer, or a copy someone already downloaded from a link you sent.

We may keep a limited record of an account, a payment, or a safety or legal matter for as long as we need it for security, tax, accounting, or legal claims. We may also keep encrypted backups for a short period before they age out.

## 9. Saving and sharing a card

You can save a rental card or a maintenance card to your own files. You can also make a link and send it by text or email. A person who has the link may be able to open that card and save the files. Treat a link like a key. Do not send it to someone who should not see the record.

After you export a copy, we cannot delete that copy from the other person’s phone, email, or files. You are responsible for what you send.

## 10. Plans, price, and app stores

Paid use of the Service, when it is offered, is a subscription. The planned price, which counsel and the owner must confirm before it is charged, is $29.99 per month for up to 10 machines, plus $9.99 per month for each additional block of 5 machines. A free trial may be offered later. If a trial is offered, we will say how long it lasts and what is deleted if you do not subscribe. Until billing is turned on, these prices are not a charge.

If you subscribe through the Apple App Store or Google Play, that store processes the payment. The store’s rules control the charge, the renewal, the cancellation, and the refund. Cancel in the store’s subscription settings. Deleting the app does not cancel a subscription. We do not receive your full card number from the store.

We may change the price or the plan. If we do, we will tell you before the change applies to a renewal, as required by the store and by law. Taxes may be added where required.

## 11. Acceptable use

You agree not to:

- break the law, or help someone else break the law, with the Service;
- upload content you do not have a right to upload;
- use the Service to harm, stalk, or threaten a person;
- try to break, probe, or overload the Service, or to get into another customer’s records;
- resell the Service or scrape it, except with our written permission;
- misrepresent a record, a time, or a photo as something it is not.

## 12. VIN and hull numbers

If you enter a vehicle identification number, we may send that number to the National Highway Traffic Safety Administration’s public VIN decoder to suggest a year, make, and model. That suggestion can be wrong or incomplete. You must check it before you rely on it. A boat hull number is stored as you enter it. We do not look it up, and we do not fill in the boat’s make or model from it.

## 13. Our intellectual property

We own the Service, including its software, design, and the My Rental Fleet name, apart from Your Content and apart from third-party names. We give you a personal, limited, revocable, non-exclusive license to use the Service while you follow these terms. You may not copy the software, reverse engineer it except where the law forbids that limit, or use our name in a way that suggests we endorse you.

## 14. Third-party services

The Service depends on other companies, including Google (Firebase) for accounts and text records, Cloudflare for photo and video storage, and Apple or Google for app-store distribution and payments. Their outages and their terms can affect the Service. A VIN lookup depends on NHTSA. We are not responsible for a third-party service we do not control.

## 15. Disclaimers

THE SERVICE IS PROVIDED “AS IS” AND “AS AVAILABLE.” TO THE FULL EXTENT ALLOWED BY LAW, WE DISCLAIM WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE, AND NON-INFRINGEMENT, AND ANY WARRANTY THAT THE SERVICE WILL BE UNINTERRUPTED, TIMELY, SECURE, OR ERROR-FREE, OR THAT A RECORD WILL BE ACCEPTED AS EVIDENCE.

Some states do not allow some of these disclaimers. In those states, the disclaimers apply only as far as the law allows.

## 16. Limitation of liability

TO THE FULL EXTENT ALLOWED BY LAW, [COMPANY] AND ITS OWNERS, EMPLOYEES, AND CONTRACTORS WILL NOT BE LIABLE FOR INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, OR FOR LOST PROFITS, LOST RECORDS, LOST GOODWILL, OR A RENTAL DISPUTE BETWEEN YOU AND YOUR CUSTOMER, EVEN IF WE WERE TOLD THOSE DAMAGES WERE POSSIBLE.

TO THE FULL EXTENT ALLOWED BY LAW, OUR TOTAL LIABILITY FOR A CLAIM ARISING OUT OF THE SERVICE WILL NOT EXCEED THE AMOUNT YOU PAID US FOR THE SERVICE IN THE THREE MONTHS BEFORE THE CLAIM, OR FIFTY DOLLARS IF YOU PAID NOTHING. This limit does not apply where the law does not allow it, including liability that cannot legally be limited.

## 17. Your responsibility for claims

You will defend and indemnify [Company] and its owners, employees, and contractors against a claim, loss, or expense, including reasonable lawyers’ fees, that comes from Your Content, your rental business, your use of the Service, or your break of these terms. We may control the defense of a claim that asks us to do so. You will cooperate.

## 18. Stopping the Service

You may stop using the Service at any time. If you subscribed through an app store, cancel there. We may suspend or stop the Service, or your access, if you break these terms, if we must do so for security or law, or if we stop offering the Service. If we stop the Service for our own business reasons, we will give a reasonable notice when we can, so you can export records that are still available.

Sections that should survive, including ownership, disclaimers, liability limits, indemnity, and disputes, stay in effect.

## 19. Changes to these terms

We may change these terms. If a change is material, we will post the new terms and update the effective date, and we will give any extra notice the law or the app store requires. If you keep using the Service after the effective date, you accept the new terms. If you do not accept them, stop using the Service.

## 20. Disputes, law, and notices

These terms are governed by the laws of the State of Arizona, not including conflict-of-law rules. Courts in Maricopa County, Arizona, are the exclusive venue for a dispute that is not required to be heard somewhere else. You and we consent to those courts. This section is a suggestion for counsel to confirm or replace.

Before filing a claim, you agree to email [Email] with a short description of the dispute and to give us 30 days to try to resolve it. Either of us may still seek an injunction for misuse of intellectual property or for unauthorized access.

Notices to us must be sent to [Email] and to [Address]. We may send notices to the email on your account, or by a posting in the Service.

## 21. Other terms

If a court holds part of these terms unenforceable, the rest stays in effect. A delay in enforcing a term is not a waiver. These terms are the whole agreement about the Service and replace earlier oral statements about the same subject. You may not assign these terms without our consent. We may assign them to a successor of the business. There are no third-party beneficiaries.

## 22. Contact

[Company]
[Address]
[Email]

# Privacy Policy

*Effective date: [Effective Date]*

This policy explains how [Company], [Entity] (“we,” “us,” or “our”), handles information when you use My Rental Fleet. It should be read with the Terms and Conditions. If a word is defined there, the same meaning applies here.

## 1. Who this policy covers

This policy covers the operator who uses the Service. It also describes information that operator may store about a renter or another person, such as a name in a rental record or a person who appears in a photo. Renters do not usually have their own account. If you are a renter and you have a question about a record, contact the operator who made it. You may also contact us at [Email], and we will point you to the account holder where we can.

## 2. Information we collect

**Account information.** When accounts are turned on, we collect the name, email address, password, and account identifiers needed to sign you in. Passwords are handled by our authentication provider. We do not ask you to send us a password by email.

**Fleet and inspection records.** You may store a machine’s nickname, year, make, model, VIN or boat hull number, status, and cover photo. A rental record may include the renter’s name, miles or hours, fuel, notes, an issue mark, photos, a walk-around video, and times. A maintenance record may include a description of the work, miles or hours, a cost, notes, receipt photos, and times.

**Times.** We store the time reported by your device and, when the device connects, the time our server receives the record. We use those times as part of the record.

**Device and connection information.** We receive ordinary technical data needed to run the Service, such as whether the device is online, an IP address when you contact our servers, the kind of browser or app, and error messages if something fails. The current Service does not collect GPS or precise location.

**Payment information.** When subscriptions are offered through the Apple App Store or Google Play, the store collects and processes payment. We receive subscription status and a store transaction identifier. We do not receive your full payment-card number.

**Support messages.** If you email us, we keep the message and our reply.

We do not buy personal information, and we do not build advertising profiles from the Service.

## 3. How we use information

We use information to:

- provide, secure, and fix the Service;
- store your fleet, inspection, and maintenance records and show them to you;
- upload files that were saved on the device while it was offline;
- look up a VIN you submit, when you ask the Service to identify a vehicle;
- send a share link you create;
- charge for a subscription through the app store, when billing is on;

- answer support requests and send service notices;
- investigate abuse, fraud, and security problems;
- meet legal duties.

We do not sell your personal information. We do not share it for cross-context behavioral advertising.

## 4. Where information is stored

Text records and account data are stored with Google Firebase. Photos and video are stored with Cloudflare R2. A copy of a recent record, and files that have not uploaded yet, can also sit on your device. Vendors process this information for us, under their own terms and security duties, and only to provide the Service.

Those vendors may store data in the United States. If you use the Service from another country, you understand that your information will be processed in the United States.

## 5. How long we keep information

Rental records and the photos and videos attached to them are deleted from the Service about one year after the rental record is created. Save your own copy if you need it longer.

Maintenance records stay until you delete them, or until the machine or the account is deleted.

If you delete a machine, we delete the stored records and media for that machine from the Service. A file you already exported, or a file someone already saved from a link, is outside our systems.

If you close your account, we will delete or de-identify the account data and stored records, except for information we must keep for security, fraud prevention, tax, accounting, or legal claims, and except for short-lived backups.

Files that remain only on your device are under your control. Removing the app, or losing the device before an upload finishes, can delete those local files.

## 6. When we share information

We share information only in these cases:

- **Vendors** that host the Service, including Google Firebase, Cloudflare, and, for a paid app, Apple or Google.
- **A VIN lookup** you start. The VIN is sent to NHTSA’s public decoder. A hull number is not sent.
- **A link you create.** Anyone with the link can open that card. The link does not open the rest of your account.
- **Legal reasons.** We may share information if we believe in good faith that the law, a court order, or a government request requires it, or if it is needed to protect a person, the Service, or our rights.
- **A business transfer.** If the Service is sold or merged, records can transfer to the new owner under this policy. We will tell you if the law requires notice.

We do not share your fleet records with other customers.

## 7. Security

We use access controls, encrypted connections, and vendor security tools that are reasonable for a service of this size. No method of storage or transmission is perfectly secure. You should protect the phone that holds offline copies and the email account you use to sign in.

## 8. Your choices

You can review and correct fleet and inspection information in the Service. You can delete a photo during an inspection, delete a record, or delete a machine and the files stored with it. You can save a copy of a card before it is deleted. You can ask us to close your account by emailing [Email].

Depending on where you live, you may have a right to know, to access, to correct, or to delete personal information, and a right to appeal a refusal. We will not discriminate against you for using a privacy right. To ask, email [Email]. We may need to confirm that you control the account. An authorized agent may submit a request if the law allows it and the agent shows authority.

If we deny a request, we will explain why, unless the law forbids that, and we will tell you how to appeal if an appeal right applies.

## 9. Children

The Service is not for children under 13. We do not knowingly collect personal information from a child under 13. If you believe a child has given us personal information, email [Email] and we will delete it.

## 10. Changes to this policy

We may update this policy. We will change the effective date and, if a change is material, give the notice the law requires. The new policy applies to the Service from that date.

## 11. Contact

Privacy questions and requests go to:

[Company]
[Address]
[Email]

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*End of draft. This document was prepared on November 12, 2026, as a working draft for a licensed attorney. It is not legal advice, and it is not approved for customers until counsel revises it and the blanks are filled in.*